

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 953

Introduced by von Gillern, 4.

Read first time January 12, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Site and Building Development Act; to
- 2 amend sections 81-12,147 and 81-12,148, Reissue Revised Statutes of
- 3 Nebraska; to change provisions related to eligible activities for
- 4 and requirements for assistance from the Site and Building
- 5 Development Fund; and to repeal the original sections.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 81-12,147, Reissue Revised Statutes of Nebraska,
2 is amended to read:

3 81-12,147 (1) Except as provided in subsection (2) of this section,
4 the Department of Economic Development shall use the Site and Building
5 Development Fund to finance loans, grants, subsidies, credit
6 enhancements, and other financial assistance for industrial site and
7 building development and for expenses of the department as appropriated
8 by the Legislature for administering the fund. The following activities
9 are eligible for assistance from the fund:

10 (a) Grants or zero-interest loans to villages, cities, or counties
11 to acquire land, infuse infrastructure, or otherwise make large sites and
12 buildings ready for industrial development;

13 (b) Matching funds for new construction, rehabilitation, or
14 acquisition of land and buildings to assist villages, cities, and
15 counties;

16 (c) Technical assistance, design and finance services, and
17 consultation for villages, cities, and counties for the preparation and
18 creation of industrial-ready sites and buildings;

19 (d) Loan guarantees for eligible projects;

20 (e) Projects making industrial-ready sites and buildings more
21 accessible to business and industry;

22 (f) Infrastructure projects necessary for the development of
23 industrial-ready sites and buildings;

24 (g) Projects that mitigate the economic impact of a closure or
25 downsizing of a private-sector entity by making necessary improvements to
26 buildings and infrastructure;

27 (h) Public and private sector initiatives that will improve the
28 military value of military installations by making necessary improvements
29 to buildings and infrastructure, including, but not limited to, a grant
30 for the establishment of the United States Strategic Command Nuclear
31 Command, Control, and Communications public-private-partnership facility;

1 (i) A grant to a city of the second class that is served by two
2 first-class railroads, that is within fifteen miles of two state borders,
3 and that partners with public power utilities for purposes of expanding
4 electrical system capacities and enhancing redundancy and resilience;

5 (j) A grant of two million dollars to a city of the first class
6 located in the third congressional district if the property previously
7 housed a university or college that is no longer extant and if the
8 improvement and revitalization of the real property is for purposes of
9 supporting the housing, employment, and program needs of youth exiting
10 the foster care system. In addition, the real property may be used for
11 youth exiting juvenile court supervision in an out-of-home placement;

12 (k) Public and private sector initiatives that will improve the
13 value of cities of the second class that have partnered with the United
14 States Department of Defense or its contractors on upgrades to ground-
15 based nuclear deterrence. Such improvements include the construction of
16 electrical, drinking water, and clean water infrastructure; and

17 (l) Identification, evaluation, and development of large commercial
18 and industrial sites and building infrastructure to attract major
19 investment and employment opportunities for advanced manufacturing,
20 processing, trade, technology, aerospace, automotive, clean energy, life
21 science, and other transformational industries in Nebraska by means of
22 the department providing grants to or partnering with political
23 subdivisions, including inland port authorities under the Municipal
24 Inland Port Authority Act, or nonprofit economic development corporations
25 and entering into contracts for consulting, engineering, and development
26 studies to identify, evaluate, and develop large commercial and
27 industrial sites in Nebraska; and -

28 (m) Grants to political subdivisions and nationally and state
29 accredited golf associations to construct golf facilities and related
30 infrastructure. Such facilities shall be located within the boundaries of
31 a city of the metropolitan class.

1 (2) The Department of Economic Development shall use the subaccount
2 of the Site and Building Development Fund described in subsection (2) of
3 section 81-12,146 to provide financial assistance to any inland port
4 authority created under the Municipal Inland Port Authority Act to help
5 finance large shovel-ready commercial and industrial sites developed
6 under such act.

7 **Sec. 2.** Section 81-12,148, Reissue Revised Statutes of Nebraska, is
8 amended to read:

9 81-12,148 (1) Governmental subdivisions and Nebraska nonprofit
10 organizations are eligible to receive assistance under the Site and
11 Building Development Act. Any entity receiving assistance under
12 subsection (1) of section 81-12,147 shall provide, or cause to be
13 provided, matching funds for the eligible activity in an amount
14 determined by the Department of Economic Development, which amount shall
15 be at least equal to one hundred percent of the amount of assistance
16 provided by the Site and Building Development Fund. Nothing in the act
17 shall be construed to allow individuals or businesses to receive direct
18 loans from the fund.

19 (2) An applicant for a grant for development of a public-private-
20 partnership facility under subdivision (1)(h) of section 81-12,147 shall
21 provide the Director of Economic Development with a letter of support
22 from the United States Strategic Command prior to approval of the
23 application and with proof of the availability of twenty million dollars
24 in private or other funds for the facility. No funds shall be expended or
25 grants awarded until receipt of proof of the availability of twenty
26 million dollars in private or other funds for the facility and
27 certification is provided by the Director of Economic Development to the
28 budget administrator of the budget division of the Department of
29 Administrative Services.

30 (3) An applicant for a grant for development under subdivision (1)
31 (k) of section 81-12,147 is not required to meet the matching fund

1 requirements pursuant to this section but shall provide the Director of
2 Economic Development a letter from the United States Department of
3 Defense or contractor providing upgrades to ground-based nuclear
4 deterrence that infrastructure improvements, including the construction
5 of electrical, drinking water, and clean water infrastructure, will not
6 be included in the scope of the project. No grants shall be awarded or
7 funds expended until such letter is received.

8 (4)(a) An applicant for a grant for construction of a golf facility
9 under subdivision (1)(m) of section 81-12,147 shall, prior to approval of
10 the application, provide the Director of Economic Development with:

11 (i) Documentation demonstrating the facility's programming for
12 veterans;

13 (ii) Documentation demonstrating the facility's programming for
14 youth;

15 (iii) A letter of support from a nationally accredited golf
16 association;

17 (iv) A letter of support from a state accredited golf association;

18 (v) A letter of support from the mayor of the city of the
19 metropolitan class where the facility will be located; and

20 (vi) Proof of funding for at least eight percent of the total costs
21 of the construction.

22 (b) A grant issued under this subsection shall not exceed twenty
23 percent of the total costs of the construction.

24 (5) (4) This section does not apply to any inland port authority
25 receiving assistance under subsection (2) of section 81-12,147.

26 **Sec. 3.** Original sections 81-12,147 and 81-12,148, Reissue Revised
27 Statutes of Nebraska, are repealed.